



2026:AHC:138831-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 18550 of 2026

Smt Neelam Gupta

.....Petitioner(s)

Versus

Uttar Pradesh Power Corporation Ltd. And 4
Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Shesh Kumar Srivastava
Counsel for Respondent(s)	:	C.S.C., Rishu Mishra

Court No. - 29

HON'BLE ARINDAM SINHA, J.
HON'BLE SATYA VEER SINGH, J.

1. Petitioner seeks electricity connection. There is dispute regarding occupation in the premises. Petitioner is wife of the son from his deceased mother's second marriage. The lady had children from her other marriages as well. Mr. Shesh Kumar Srivastava, learned advocate appears for petitioner. By order dated 25th May, 2026 we had given petitioner adjournment to apply for addition of parties, if she will. Mr. Srivastava files the application. He submits, his client is ready to also pay electricity charges for consumption through the common meter in the premises.

2. Mr. Srivastava relies on view taken by a Division Bench of this Court in **Seema Mansoor vs. U.P. Power Corporation Limited** reported in **2014 (6) ADJ 672 (DB)**, paragraphs-15 and 16 . Paragraph-16 is reproduced below.

"16. From the reading of the aforesaid provisions, it is clear that licensee is under an obligation to supply electrical energy on a proper application being made and every owner or occupier, which will include a tenant, of the premises has statutory right to apply and obtain electricity supply from the licensee subject to his fulfilling requirements under the provisions of the Electricity Act, 2003 and the Electricity Supply Code 2005. Thus, an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. From the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of

electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord."

3. Mr. Shubhranshu Shekhar, learned advocate, Additional Chief Standing Counsel appears on behalf of State. Mr. Pankaj Dubey, learned advocate, holding the brief, appears on behalf of respondent nos. 2 to 4 (the supply company). He hands up his instruction dated 9th July, 2026 with copy to Mr. Srivastava to submit, petitioner herself refused spot inspection. Relevant paragraph from the instruction is reproduced below.

"उक्त के सन्दर्भ में आपको अवगत कराना है कि श्रीमती नीलम गुप्ता द्वारा झटपट पोर्टल के माध्यम से दिनांक 18.04.2026 को आवेदन सं० J4478420801, विधा एल०एम०वी० 01, विद्युत भार 02 कि०वा० का नया संयोजन प्राप्त करने हेतु अनुरोध किया गया था, जिसके उपरान्त सम्बन्धित अवर अभियन्ता द्वारा आवेदन में अंकित मो०सं० 8738888269 पर सम्पर्क करने पर आवेदक द्वारा परिसर का स्थलीय निरीक्षण कराने से मना कर दिया गया एवं उक्त परिसर पर स्थायी निवासी होने सम्बन्धित कोई भी प्रपत्र प्रस्तुत नहीं किया गया। यह भी अवगत कराया गया कि उक्त परिसर पर सम्पत्ति का आपसी विवाद है, जिसका वाद सं० 130/2024, जूनियर डिवीजन-03, गोरखपुर में लम्बित है। सम्बन्धित अवर अभियन्ता द्वारा दूरभाष के माध्यम से एवं दिनांक 27.04.2026 को झटपट पोर्टल से Query के माध्यम से आवेदक से स्वामित्व एवं वाद सम्बन्धित आवश्यक प्रपत्र उपलब्ध कराने हेतु अनुरोध किया गया था, किन्तु आवेदक द्वारा बिना कोई प्रपत्र उपलब्ध कराये /झटपट पोर्टल पर अपलोड किये बिना ही दिनांक 13.05.2026 को Query का Reply कर दिया गया, जिसके कारण आवेदन को निरस्त कर दिया गया।"

4. It appears from the instructions that in respect of the property there is suit pending. There stands view taken by Calcutta High Court on **judgment dated 11th February, 2011 in Abhimanyu Mazumdar Vs. The Superintending Engineer** reported in **AIR 2011 Cal 64** that a person in settled possession is entitled to electricity. In this case the controversy regarding settled possession cannot be resolved because petitioner herself stood in the way of spot inspection. The case of **Seema Mansoor** (supra) is distinguishable on facts since, in that case it was a tenant seeking electricity connection. In this case petitioner claims to be residing in the premises on strength of being wife of the son from one of her mother-in-law's marriages. In the facts and circumstances the writ Court will not interfere.

5. There will be no purpose served to implead other occupants of the premises because petitioner herself has resisted spot inspection. The writ petition and the application are dismissed. However, the dismissal will not prevent petitioner from making written application to the supply company to make spot inspection.

(Arindam Sinha,J.)

(Satya Veer Singh,J.)

July 10, 2026
Shiraz